

## 24STCV28835 24STCV28835

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-28

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C508%2C08%2F28%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F28%2F2026)

Source SHA-256: 4e16b378364e5bd1f4de5835f379a9c5c46cf86340c70845b59b94cde4f3e109

Case Number: 24STCV28835 Hearing Date: August 28, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

MARIA LOURDES GODINEZ,

Plaintiff,

vs.

ARCADIA CARE CENTER, LLC, et al.

Defendants.

Case No.:

24STCV28835

Hearing Date:

August 28, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE] ORDER

RE:

DEFENDANT

ARCADIA CARE CENTER, LLC'S MOTION TO BIFURCATE PUNITIVE DAMAGES PHASE OF TRIAL

Background

On November 1, 2024, Plaintiff Maria Lourdes Godinez ("Plaintiff") filed this action against Defendant Arcadia Care Center, LLC ("Defendant"). The Complaint alleges causes of action for (1) age discrimination, (2) gender discrimination, (3) disability discrimination,

(4) failure to provide reasonable accommodation, (5) failure to engage in good faith interactive process, (6) retaliation, and (7) wrongful termination.

In the

Complaint, Plaintiff alleges, inter alia, that "Defendants employed Ms. Godinez from on or around March 10, 2020 to on or about November 3, 2022." (Compl., ¶ 9.) Plaintiff alleges that "[t]his case presents the compelling story of a loyal and hard-working employee that was abruptly fired by her employer after suffering from an injury during the course and scope of her employment, then disability discrimination thereafter." (Compl., ¶ 7.)

Defendant

now moves for an "Order bifurcating claims for punitive damages until such time, if ever, the jury has returned a verdict entering judgment in favor of Plaintiff and against Defendant." (Notice of Mot., 2:12.) Plaintiff did not file an opposition.

Legal Standard

"The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of

action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” ((Code Civ. Proc., § 1048, subd. (b).) The court maintains discretion to try certain issues before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby.” ((Id., § 598.) Specifically, the court’s discretionary authority to sever claims and try them separately may be employed to avoid unduly prejudicing a party. ((Stencel Aero Engineering Corp. v. Superior Court of San Francisco (1976) 56 Cal.App.3d 978, 988.)

Additionally, Evidence Code section 320 provides that trial courts have discretion to regulate the order of proof. “[T]rial courts have broad discretion to determine the order of proof in the interests of judicial economy.” ((Grappo v. Coventry Fin. Corp. (1991) 235 Cal.App.3d 496, 504.)

The objective of bifurcation is “avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff.” ((Horton v. Jones (1972) 26 Cal.App.3d 952, 955.)

The court’s inherent power to regulate the order of trial, allows it to entertain a motion to bifurcate at any time, including during the trial itself. ((McLellan v. McLellan (1972) 23 Cal.App.3d 343, 353.) This discretion is not disturbed on appeal, except for manifest abuse. (McLellan v. McLellan, supra, at page 353.)

///

///

#### Discussion

Defendant explains that “Plaintiff seeks awards of punitive damages against Defendant. Defendant emphatically denies that there is any basis for imposing punitive damages against any Defendant. Nonetheless, Defendant hereby move for bifurcation of this trial with respect to punitive damages issues pursuant to Civil Code section 3295(d).” (Mot., 3:13-16.)

Civil Code section 3295, subdivision (d),  
provides that:

“The court shall, on application of any defendant,  
preclude the admission of evidence of that defendant's profits or financial  
condition until after the trier of fact returns a verdict for plaintiff  
awarding actual damages and finds that a defendant is guilty of malice,  
oppression, or fraud in accordance with Section 3294.  
Evidence of profit and financial condition shall be admissible only as to the  
defendant or defendants found to be liable to the plaintiff and to be guilty of  
malice, oppression, or fraud. Evidence of profit and financial condition shall  
be presented to the same trier of fact that found for the plaintiff and found  
one or more defendants guilty of malice, oppression, or fraud.”

Defendant asserts that “[t]he statute thus requires that, upon a  
defendant's motion, the court bifurcate the trial so that the amount of any  
award of punitive damages shall not be considered by the jury unless the issues  
of liability, compensatory damages, and malice, oppression or fraud have first  
been resolved against the defendant... Pursuant to this statutory mandate, trial  
in this matter must be bifurcated such that evidence related to the amount of  
any award of punitive damages is excluded in the first phase of trial.” (Mot.,  
3:26-4:4.)

Pursuant to the plain language of the statute, the trial must be  
bifurcated so that, if a determination of punitive damages is necessary, it  
occurs after the jury returns a favorable verdict for Plaintiff. In light of  
the clear language quoted above and Plaintiff's lack of opposition, the Court  
grants Defendant's request to bifurcate the case for trial.

#### Conclusion

Based on the foregoing, Defendant's motion to bifurcate trial is  
GRANTED. The trial will proceed in two parts. Defendant's financial condition  
will not be addressed in the initial trial. If, after the initial trial, the  
jury returns a verdict for Plaintiff awarding damages and finds there is  
evidence that Defendant is guilty of malice, oppression, or fraud in accordance  
with Civil Code section 3294, then the trial will  
proceed in a second part to review Defendant's financial condition and address  
punitive damages.

Defendant is ordered to provide notice of this Order.~~~~~

DATED: August 28, 2026

---

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court